COLORADO

Chief Information Officer & Executive Director

Governor's Office of Information Technology

Delegation of Authority Procedure

Document ID	PROC-ENT-001
Title	Delegation of Authority Procedure
Executive Sponsor	David Edinger, Chief Information Officer & Executive Director
Issuing Authority	Governor's Office of Information Technology (OIT)
Applies to	State agencies as defined in C.R.S. 24-37.5-102(28) — all departments, divisions, commissions, boards, bureaus, and institutions in the executive branch of state government, excluding the legislative and judicial departments, the department of education, the department of law, the department of state, the department of the treasury, and state-supported institutions of higher education.
Instrument Type	Procedure
Version	1.0
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1. Purpose

This procedure outlines the process, requirements and responsibilities for the delegation of authority of certain information technology (IT) functions from the Governor's Office of Information Technology (OIT) to another state agency.

2. Applicability

This procedure applies to state agencies as defined in C.R.S. 24-37.5-102(28) as "all of the departments, divisions, commissions, boards, bureaus, and institutions in the executive branch of the state government" — not including the legislative or judicial departments, the department of education, the department of law, the department of state, the department of the treasury, or state-supported institutions of higher education.

Requirements

For delegation of authority requests to be considered, OIT requires confirmation that the agency can fulfill the following requirements:

- The state agency has requested that the function be delegated and the Agency's Executive Director supports the request.

- The state agency has the necessary resources to perform or control the function requesting to be delegated.
- The IT function being requested for delegation is a unique or mission-critical function of the state agency requesting delegation of authority.
- The delegation of authority results in net cost savings or improved service delivery to the state as a whole, or for the unique, mission-critical function of the state agency.
- The IT function is not otherwise provided in OIT's oversight and standards governance developed pursuant to C.R.S. 24-37.5-105(4).

3. Process

Submissions

- The agency's Information Technology Director (ITD) needs to receive a written request for delegation of authority from the Agency Executive Director.
- All requests must be submitted using the OIT Delegation of Authority Request Form. The form will be received and processed by OIT.
- OIT's Chief Information Officer and Executive Director (CIO) will make a decision to deny, approve to proceed, or seek additional information regarding a delegation of authority request within 30 calendar days of receipt of the full submission (written request plus completed form), unless the request requires expedited approval in support of a declared emergency or matters related to public safety pursuant to C.R.S. 24-33.5-704.

Potential Outcomes

After consideration of a request, the CIO will make one of the following decisions and notify the state agency submitting the request:

- Denied: OIT will summarize why the request is being denied and cite the specific instances where the request fails to meet the requirements set forth in this procedure and/or C.R.S. 24-37.5-105.4.
- Approval to Proceed: OIT will indicate the request has approval to proceed and initiate negotiations and the execution of the delegation of authority interagency agreement.

Disputes

In the event a dispute arises between the state agency and OIT in relation to the request, including a denial of the request:

- The CIO and the Agency's Executive Director will attempt to resolve the dispute.
- If the CIO and the Agency's Executive Director are unable to resolve the dispute within 10 business days from the date the dispute arises, the dispute will be referred to the Governor for final resolution.

Execution of Delegation of Authority Interagency Agreement

The delegation of authority interagency agreement explicitly delegates authority of the requested IT function to the agency and shifts full responsibility, including an acknowledgment by the agency that it has assumed responsibility for ensuring ongoing compliance with state and federal IT policies and standards pursuant to section 24-37.5-105(4), and all liability associated with the delegated IT function. Pursuant to C.R.S. 24-37.5-105.4(3), upon an approval-to-proceed determination:

- OIT and the requesting agency representatives will negotiate and execute a written delegation of authority interagency agreement that must contain: a precise definition of the IT function to be delegated; a clear description of the standards to be met in performing the delegated function; designation of the state agency responsible for ensuring operational security and validating compliance with state and federal security policies and standards; a provision for periodic administrative audits by OIT; the date on which the agreement terminates; and designation of the appointed authority responsible for the delegated services, including rates to be charged for staff, if any.
- OIT will distribute the signed contract to the Agency Executive Director, ITD, and OIT Procurement.

Negotiation of Delegation of Authority Interagency Agreement

OIT maintains an interagency agreement framework for delegation of authority. Using that framework, OIT and the requesting agency will negotiate necessary details and execute the agreement. If OIT and the requesting agency are unable to come to an agreement, approval to proceed will be revoked.

Renewal of Delegation of Authority Interagency Agreement

Six months prior to expiration of an existing agreement, the renewal process begins:

- The ITD will alert the agency that the agreement will expire in six months and ask whether the agency intends to request renewal.
- The ITD will meet with the agency to discuss any changes to the agreement and submit the renewal form.
- OIT will review the renewal form following the same process as the initial request.

Annual Review and Administrative Audits

OIT will conduct an annual review and complete additional administrative audits as needed with the agency to assess compliance with the delegation of authority interagency agreement. If needed, OIT will terminate an agreement if an annual review or administrative audit reveals a lack of compliance by the state agency, pursuant to C.R.S. 24-37.5-105.4(4).

4. Definitions and Descriptions

The following definitions and descriptions are for the sole purpose of the delegation of authority policy and procedure.

Titles and Positions

- State Chief Information Officer (CIO): The State Chief Information Officer appointed pursuant to C.R.S. 24-37.5-103.
- Executive Director: The executive director of the executive branch agency requesting delegation of authority.
- State Auditor: The Colorado State Auditor appointed pursuant to C.R.S. 2-3-102.
- Information Technology Director (ITD): Senior technology staff member serving as a liaison between their assigned customer agency and OIT.

Unique or Mission Critical Functions of State Agencies

These functions cannot be interrupted for 12 hours or must be resumed within 30 days. They are organization-level functions that must be continued throughout, or resumed rapidly after, a disruption of normal activities, where any interruption or potential loss of data could be

detrimental to an organization's operations or statutory responsibilities. They require real-time or constant action to ensure an agency's operations or authorities, are typically monitored and/or staffed 24/7, and rely on command centers or other central operations facilities.

Necessary Resources to Perform Information Technology Functions

Documentation must be provided demonstrating that the requesting agency has all necessary resources specified below:

- Staff: The requesting agency must already have in place the necessary and/or appropriated FTE to perform and fully administer the function being requested, including contracts, procurement, finance, accounting, human resources, operations, and management staff. OIT employees whose work is not solely attributed to the function being requested cannot be used to determine if the agency has the necessary resources.
- Financial: The requesting agency must already have direct authority or responsibility for funding designated by federal, state, or local level appropriations.
- Audit Findings: The agency must not have unimplemented critical findings or deficiencies related to the function being delegated that resulted from performance, financial, and/or IT audits performed by the State Auditor.

Additional Definitions

- Net Cost Savings: Documentation, using qualitative and quantitative metrics, demonstrating the current cost services model compared to a potential cost services model, with clear and convincing evidence that savings cannot be achieved under the current supervision or structure. Net cost savings will be verified by OIT's Chief Financial Officer.
- Improved Service Delivery: Documentation, using qualitative and quantitative metrics, demonstrating the current service delivery model and environment compared to a potential model, with clear and convincing evidence of improved service delivery potential.
- Delegation of Authority Request Form: The form provided by OIT to agencies that want to make a request.
- Delegation of Authority Interagency Agreement: An agreement between two or more state agencies pursuant to C.R.S. 24-37.5-105.4(3) (delegation of authority) and 1 CCR 101-1-3-5 (interagency agreements), including any exhibits and other necessary details.

5. Responsibilities

State Agency Responsibilities

- Agencies must not implement plans or make strategic decisions in isolation on any IT function until an executed delegation of authority interagency agreement is in place.
- Agencies must not take action or make public communications that would otherwise impact OIT's ability to review and make a determination for delegation of authority requests.
- Agencies must coordinate with OIT before submitting budget decision items, budget amendments, supplemental budget requests, and legislative proposals that derive from a delegation of authority request pursuant to C.R.S. 24-37.5-105.4.

- Agencies with delegated authority accept the role and responsibility to report and respond to the Joint Technology Committee and other legislative committees, boards, or commissions.
- Agencies with delegated authority must ensure agency compliance with all laws, OIT's Colorado Information Security Policies, the Statewide GenAI Policy and any successor or related AI policies, and the terms of the executed delegation of authority interagency agreement.
- Agencies with delegated authority must designate a point of contact responsible for responding to OIT inquiries and providing OIT with access to any reports, data, contracts, agreements, or other documentation used to execute the delegated function.

OIT Responsibilities

- Establish and maintain clear procedures for handling delegation of authority requests.
- Provide a framework for the delegation of authority interagency agreement.
- Under the authority of the State Chief Information Officer, evaluate delegation of authority requests and supporting documentation in line with statutory requirements to determine denial or approval to proceed.
- Ensure clear communication at all times on issues regarding delegation of authority requests.
- Review the OIT Delegation of Authority Policy and this procedure every 12 months.
- Annually review existing delegation of authority interagency agreements with the agency.
- Review and perform periodic administrative audits of delegated functions with agencies as necessary.
- Facilitate the review of existing delegation of authority interagency agreements following the beginning of a Governor's new term in office.
- Terminate a delegation of authority interagency agreement if an administrative audit reveals a lack of compliance by the state agency, pursuant to C.R.S. 24-37.5-105.4(4).
- Report annually to the Joint Technology Committee and other appropriate entities of the Colorado General Assembly regarding IT functions that have delegated authority.

6. Compliance

Failure to follow this procedure and comply with the associated OIT Delegation of Authority Policy will result in automatic denial of a request and may risk placing the requesting agency, OIT and/or the State out of statutory and/or legal compliance.

7. References

- Delegation of Authority Policy
- HB21-1236, State Information Technology
- C.R.S. 24-37.5-105.4 - Delegation of Authority
- C.R.S. 24-37.5-105(4) - OIT Governance
- 1 CCR 101-1-3-5 - Interagency Agreements
- OIT Technical Standards and Policies
- Delegation of Authority Request Form

8. Expiration

This procedure remains in effect until superseded or rescinded by the State Chief Information Officer & Executive Director of OIT.